Form 4.02B

2022 No. 518063

Notice of Action

in

The Supreme Court of Nova Scotia

Philip A. Bralich, Ph.D. *Plaintiff*

v.

David Brown, Secretary to Sakyong Mipham Rinpoche, Shambhala Canada, Inc. Shambhala International, Sakyong Potrang, Inc., Front Range Shambhala, Inc., Global Shambhala Services, Inc. *Defendants*

September 24, 2022

Statement of Claim.

Trademark Infringement – This complaint alleges trademark infringement by fraud through a licensing agreement between two corporations, Shambhala International, Inc. and the Sakyong Potrang, Inc. arrived at by excluding crucial evidence and testimony for the purpose of deception concerning the authenticity and quality of the product offered through those trademarks and seeks relief in the form of an immediate, temporary injunction against the use of those trademarks, logos, and related protected insignia and a later permanent injunction should this action succeed in the Court. In addition, this action seeks compensatory and punitive damages to be paid to the rightful owners of those logos and the trademarks as well as possible prosecution for criminal fraud to aid in the resolution of this matter and to mitigate against its recurrence.

1 Introduction.

The trademark infringement alleged in this complaint involves the licensing agreement between Shambhala International, Inc. and the Sakyong Potrang, Inc. for the trademarks and logos associated with the Shambhala International church and related corporate entities and alleges that as the "vote" and the opinion of the true leader of the organization and the lineage holder of the Buddhist traditions those corporations represent, the Sakyong Mipham Rinpoche (the Sakyong),